



POLICE DEPARTMENT

November 7, 2025

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In the Matter of the Charges and Specifications :
- against - :

Police Officer Julian Reyes :
Tax Registry No. 959128 :
44 Precinct :

Case No.
C-031713

Police Officer Jovanna Martes :
Tax Registry No. 953055 :
44 Precinct :

Case No.
C-031714

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

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Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondents:

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To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. C-031713

1. Police Officer Julian Reyes, on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, wrongfully used force, in that, they used physical force against [the complainant], without police necessity, by forcefully pulling his body onto the gurney by forcefully pulling his jacket from behind.

P.G. 221-02, Page 2, Paragraphs 11, 12

USE OF FORCE

2. Police Officer Julian Reyes, on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, wrongfully used force, in that, they used a chokehold against [the complainant], in that, they forcefully pulled him down on to the gurney, by pulling on his jacket from behind him, causing his jacket to be gathered around his neck tightly.

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

3. Police Officer Julian Reyes on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, restricted [the complainant's] breathing without police necessity, in that, they forcefully pulled him down on to the gurney, by pulling on his jacket, causing the jacket to be gathered around his neck tightly. [The complainant] made gagging and choking gestures and yelled: "I can't breathe," and "You're choking me."

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

Disciplinary Case No. C-031714

1. Police Officer Jovanna Martes, on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, wrongfully used force, in that, they used physical force against [the complainant], without police necessity, by forcefully pushing his body down onto a gurney with their forearm across the front of his person, on or near his collarbone area.

P.G. 221-02, Page 2, Paragraphs 11, 12

USE OF FORCE

2. Police Officer Jovanna Martes, on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, wrongfully

used force, in that, they used a chokehold against [the complainant], in that, they forcefully pulled him down on to the gurney, by pulling on his jacket from behind him, causing his jacket to be gathered around his neck tightly.

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

3. Police Officer Jovanna Martes, on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, in that, they restricted [the complainant's] breathing without police necessity, in that, they forcefully pulled him down on to the gurney, by pulling on his jacket, causing the jacket to be gathered around his neck tightly. The complainant made gagging and choking gestures and yelled: "I can't breathe," and "You're choking me."

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

4. Police Officer Jovanna Martes, on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, in that, they made offensive remarks to [the complainant], in that they heckled: "AHA, you look stupid," regarding his perceived mental deficiency.

A.G. 304-06, Page 1, Paragraph 2

PROHIBITED CONDUCT

5. Police Officer Jovanna Martes, on or about November 15, 2021, at approximately 0900 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the corner of West 165th Street and Anderson Avenue, inside of an ambulance in Bronx County, wrongfully used force against [the complainant] without police necessity, in that, they used physical force to push down on his head toward the gurney that he was restrained on and held his head down for extended moments and numerous times throughout their interaction.

P.G. 221-02, Page 2, Prohibitions 11, 12

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on October 1, 2025. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The CCRB introduced into evidence Body-Worn Camera footage from several police officers, and a recording of a hearsay interview with the complainant. Respondents each testified on their own

behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find both Respondents Not Guilty.

ANALYSIS

On the morning of November 15, 2021, there was a call that an assault had occurred inside a corner grocery store in the Bronx. Multiple officers, including the two Respondents, responded to the location, where they observed an individual ("the complainant"), who was the purported victim of the assault. The complainant, who was standing on the corner outside the store, engaged the officers in conversation, while a sergeant entered the store to investigate.

Body-Worn Camera ("BWC") footage from several officers, including Respondents, captured the interaction with the complainant. In the BWC footage of Police Officer Cuevas (CCRB Ex. 3), who also was on the scene, the complainant tells the officers that a man inside the store hit him with a baseball bat, and he wants to press charges. The officers explain that they are investigating the incident by speaking with witnesses and reviewing video footage from the store. The complainant appears impatient and agitated, and threatens to sue everyone, a common refrain throughout his interaction with the officers. At the 4:20 mark, an officer emerges from the store and asks the complainant if he is willing to have EMS check him out, but the complainant says no. The officer informs the complainant that witnesses are providing an account that is the opposite of what the complainant claimed occurred.

During the next 20 minutes, the complainant is visibly upset as he stands outside the store, shouting at the officers and insulting them. At the 16:37 mark of the same BWC footage, the complainant again states that he is going to sue the officers. An officer tells him that witnesses are saying that he hit himself with the bat, which the complainant denies. At the 9:16

mark of Respondent Martes's BWC footage (CCRB Ex. 2), the sergeant, who has emerged from the store, instructs the officers to handcuff the complainant and take him to the hospital for evaluation as a possible emotionally disturbed person. Respondent Martes, with the assistance of other officers, handcuffs the complainant behind his back, and walks him to the waiting ambulance. As they enter the ambulance, the complainant attempts to re-position the handcuffs to the front of his body and succeeds in sliding the chains of the cuffs under one of his feet. Respondent Martes tells him not to do that, and a struggle ensues as several officers attempt to secure the complainant on his back on the ambulance gurney. Respondent Martes tells him that he is making it worse for himself by struggling, but the complainant responds that he is going to sue them all and they should keep recording.

It is alleged that during the ensuing struggle to safely secure the complainant inside the ambulance, which is captured in the BWC footage, both Respondents used unreasonable force against the complainant. Respondent Martes also is charged with making offensive remarks to the complainant. The complainant did not appear to testify. Instead, the CCRB relied on a recording of a telephone interview they conducted with the complainant on December 16, 2021. (CCRB Exs. 6 & 6A) It is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross examine, and the court can observe witness demeanor. In the absence of live testimony from the complainant here, this tribunal carefully considered his prior statement, in conjunction with the other evidence presented at trial, including the video footage.

In the interview, the complainant stated that he initially went to the store to see if their camera had recorded his car being towed by the police and a towing company, who he asserted were “working in cahoots.” He claimed that while inside the store, an argument occurred, and he was hit with a bat in his elbow by one of the clerks, which is why he called the police. The complainant explained to the responding officers what happened, but they “hemmed him up” against the wall and asked him a lot of questions. The officers told him that he was on video hitting himself with a bat. The complainant was considered a threat to himself and the community and would be taken to the hospital. He was handcuffed and walked to the ambulance. (CCRB Ex. 6A at 15-18, 25-26, 31, 41, 59-60)

The complainant admitted that once inside the ambulance he did not want to lay down on the gurney. He tried to flip the handcuffs under his legs to the front but only succeeded in getting one leg over the cuffs. In this position, the officers pushed him down, twisting his neck in the process. Respondent Martes pushed his head down and turned his face toward the bench. He told the officers that they were hurting him and that he could not breathe, but his screams were ignored. (CCRB Ex. 6A at 18-19, 42-43, 47-52)

At some point after they started driving to Lincoln Hospital, the complainant’s head, which was not secured to the gurney, banged against an ambulance bench. According to the complainant, he sustained a cut to his forehead, and nerve damage to his wrists and ankles from the handcuffs being too tight. (CCRB Ex. 6A at 6-7, 19, 43, 53; CCRB Ex. 10, photograph)

The charges will be considered chronologically, with reference to the relevant BWC footage and testimony.

Specification 1 against Respondent Martes charges her with wrongfully using force in that she initially pushed the complainant down onto the gurney by placing her forearm on or near

his collarbone area. Section 221-02 of the Patrol Guide requires an officer to apply no more than the reasonable force necessary to gain control of an uncooperative subject.

The BWC footage of Officer Cuevas (CCRB Ex. 3), who was inside the ambulance, captures the moment at issue. The officers can be seen struggling to get the uncooperative complainant secured to the gurney. At the 27:56 mark, Respondent Martes reaches with her right hand to grab the complainant's jacket by the left shoulder in order to get him to lie down on the gurney. As she does so, her forearm appears to be against the complainant's upper chest area for one second. While this is happening, the complainant continues to talk, still threatening to sue the officers, and gives no indication he is in any pain from Respondent Martes's actions.

Respondent Martes testified that when the complainant tried moving his handcuffs to the front, it created a dangerous situation where his hands would be free to reach for an officer's firearm or to shove people away and try to flee. Her concern was to secure him "so that he can't hurt himself or anyone else on that ambulance." Toward that end, Respondent Martes pushed the complainant onto the gurney, and enlisted the help of other officers to secure him with straps, so that he could safely be transported to the hospital for a psychological evaluation. She told the complainant several times to stop struggling with the officers, but he did not listen. Respondent Martes was attempting to secure the complainant by grabbing his shoulders. She tried to avoid contact with his face, neck, and throat because she did not want him to get hurt. However, due to the manner in which the complainant was flailing about, her forearm did move across his upper body at the 27:56 mark of the video footage, as she attempted to get him to lie back on the gurney. She did not restrict his breathing in any way. (Tr. 44-46, 52, 63-66, 75)

The CCRB has the burden of proving, by a preponderance of the evidence, that Respondent Martes used unreasonable force. After considering the credible testimony of

Respondent Martes, in conjunction with the video footage which corroborates her account, I find that the CCRB did not meet its burden. The officers were attempting to secure the complainant to the gurney so he could safely be transported to the hospital. Instead of cooperating with their efforts, the complainant actively resisted the officers. During this rapidly unfolding struggle, during which the complainant was constantly moving his body, Respondent Martes's forearm was briefly across the complainant's chest for about one second. Under these specific circumstances, her actions did not constitute an unreasonable use of force. Accordingly, I find Respondent Martes Not Guilty of Specification 1.

Specifications 2 and 3 against Respondent Martes charge her with wrongfully restricting the complainant's breathing in a manner that constituted a chokehold by pulling on his jacket, causing the jacket to gather tightly around his neck. Similarly, all three charges against Respondent Reyes allege that he used wrongful force by pulling the complainant's jacket from behind, thereby restricting his breathing in a manner that constituted a chokehold. In his hearsay statement, the complainant claimed that his breathing was restricted at some point, though he did not mention anything about his jacket gathering around his neck.

In order to prove these charges, the CCRB relies primarily on the video footage of Officer Cuevas (CCRB Ex. 3).¹ Beginning at the 27:58 mark of the footage, Respondent Martes grabs the complainant's jacket in the upper-chest area and tries to pull him down as he continues to struggle. The complainant tells the officers to keep recording, then yells that he is being assaulted by the police, states he can't breathe, sticks his tongue out, and starts coughing. Respondent Martes tells him he is not being assaulted, he can breathe, and nobody is touching his neck. Beginning at 28:11, Respondent Reyes, who is standing behind the complainant, uses

¹ This interaction also is captured by the BWC footage of Police Officer Khan. (CCRB Ex. 5 at 16:10-16:30)

his left hand to pull on the complainant's jacket from behind his neck area, as the officers continue to struggle to gain control of the complainant and secure him to the gurney.

Respondent Martes testified that the complainant still was not compliant, and he continued to be a liability to himself and the other people in the ambulance, so EMS could not begin the drive to the hospital. She tried to secure the complainant on the gurney by grabbing his shoulders. However, because he was not staying still, she and Respondent Reyes did grab the complainant's jacket in order to hold him down. She was careful not to restrict his breathing. Although the complainant was claiming that he could not breathe, Respondent Martes did not see any indication that he was really having any difficulty doing so, as he was screaming the entire time. (Tr. 46-47, 68-69)

Respondent Reyes similarly testified that the officers were following protocol in trying to get the complainant to lay down so that they could secure him to the gurney. All of the belts needed to be fastened in order for the ambulance to proceed to the hospital. After he entered the ambulance, Respondent Reyes was standing behind the complainant, who was resisting their efforts to secure him, trying to bite the officers, and "doing everything in [his] power not to let [the officers] put the belts on." Respondent Reyes testified that he focused on the complainant's shoulder and grabbed the complainant's jacket in that area in order to pull him down. He insisted that he did not choke the complainant or restrict his breathing in any way. The front collar of the jacket gathered underneath the complainant's neck, but the jacket was not tight-fitting and it wasn't choking him. He acknowledged that the complainant was cursing and claiming that he was being choked and could not breathe, but from his vantage point Respondent Reyes did not see any evidence that the complainant was being choked and did not believe him. (Tr. 103-108, 113-122)

The CCRB does not allege that either Respondent acted with the intent to choke the complainant. Rather, the accusation is that Respondents should nevertheless be held accountable for their actions since when they pulled on the complainant's jacket it bunched up around his throat in a way that constituted a chokehold and restricted his breathing, which is prohibited by Patrol Guide Section 221-01 (2). A chokehold is defined to include any pressure to the throat, carotid artery, or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow. While Respondents both acknowledged grabbing the complainant by his jacket, they each credibly denied that in doing so, they actually restricted the complainant's breathing or acted in a way that could have restricted his breathing.

After carefully considering the testimony of Respondents, in conjunction with the video footage, I am not persuaded that the CCRB has met its burden with respect to either Respondent. Again, the complainant did not even mention his jacket being pulled in his CCRB interview. Since he did not appear to testify at trial, he was not examined in detail about whether his jacket was pulled in a way that might have affected his breathing. He also could not be questioned as to whether any of his reactions, as seen on video, were exaggerated for the camera.

In contrast, I credit the live testimony of each Respondent that they were taking care not to interfere with the complainant's breathing. Their concern was getting the complainant safely secured to the gurney, since the ambulance would not depart for the hospital until that was done. Despite the complainant's active resistance, both Respondents were careful not to do anything that might restrict the complainant's breathing.

Moreover, the footage, itself, does not support a finding that Respondents wrongfully used force by grabbing and pulling on the complainant's jacket. Despite the complainant's protestations that he was being assaulted by the police and could not breathe, the footage does

not prove that the complainant's breathing was really restricted, or that in grabbing the jacket Respondents put pressure on the complainant's throat in a manner which may have prevented or hindered his breathing. Under these specific circumstances, the evidence did not establish that either Respondent committed misconduct. Accordingly, I find Respondent Martes Not Guilty of Specifications 2 and 3, and Respondent Reyes Not Guilty of all three charges against him.

Specification 4 against Respondent Martes charges her with making an offensive remark to the complainant. Specifically, she stated to him, "You look stupid," which the CCRB alleges was a reference to the complainant's perceived mental deficiency.

Although the complainant made no reference to this remark during his CCRB interview, it is undisputed that Respondent Martes did make the comment in question, around the time where Respondents were pulling on the complainant's jacket in order to secure him on the gurney as discussed above. At the 10:43 mark of CCRB's Exhibit 3, as the complainant continues to struggle with the officers and starts coughing, Respondent Martes can be heard saying to him, "Stop. You're being recorded, you're looking stupid."

At trial, Respondent Martes admitted to making the remark, though she insisted that it was not meant to mock or humiliate the complainant, or make fun of any mental health issues he might have. The comment had nothing to do with the complainant being an emotionally disturbed person. She was essentially telling him that he was acting "silly," since he was not under arrest, and that his combative behavior was unnecessary, with the hope that she would convince him to stop his resistance. (Tr. 51, 79-83, 96-97)

The charge against Respondent Martes alleges that she made an offensive remark, in that she was "heckling" the complainant regarding his perceived mental deficiency. As noted in the

Disciplinary Guidelines, “offensive language” is more serious conduct than “discourtesy,” and includes slurs based on membership in a protected class, including a person with a disability.

On the one hand, Respondent Martes could have been more careful in her choice of words when speaking to the complainant. Rather than telling him he was “looking stupid,” she might have referred to his actions as “silly,” as she did during her testimony at trial. But under these specific circumstances, I am not persuaded by the credible evidence that Respondent Martes made the remark based on the complainant’s perceived disability or with ill intent. Throughout their interaction, Respondent Martes could repeatedly be heard attempting to de-escalate the situation. She urged the complainant to stop struggling with the officers and emphasized that he was not accomplishing anything by continuing to do so. It was in this vein that she made the comment, not with the intent to “heckle” the complainant, but to encourage him to stop resisting. She came across as sincere on the witness stand when she testified that her use of the word “stupid” had nothing to do with his perceived mental deficiency.

As such, the CCRB has not met its burden of proving, by a preponderance of the credible evidence, that Respondent Martes used offensive language toward the complainant. Accordingly, I find her Not Guilty of Specification 4.

Specification 5 against Respondent Martes charges her with wrongfully using force by pushing down on the complainant’s head for extended moments throughout their interaction. Specifically, CCRB alleges that beginning at the 11:18 mark of Respondent Martes’s BWC footage (CCRB Ex. 2), she can be seen wrongfully holding down the complainant’s head for the next seven minutes. (*See also* CCRB Ex. 3 at 28:52-35:35) Beginning at 11:51, Respondent Martes uses her hands to try to hold the complainant’s head still. His head moves off the side of the gurney, as another officer attempts to secure a mask on his face. The complainant resists,

and the officers repeatedly tell him to stop biting. The struggle to secure the complainant continues for several minutes, as the complainant asks why they are touching his face, and he complains about his wrist and hands. The officers tell him to stop moving, to no avail. At 15:42, Respondent Martes's hands can be seen holding the complainant's head, and she grabs his jacket as well, as she and the other officers continue their efforts to position him securely on the gurney. Specks of blood are on the sheets, though no specific cut can be seen on the complainant at that point. At 17:03, Respondent Martes's hands are holding the complainant's head on the gurney, but 20 seconds later the complainant moves his head back off the gurney. At 18:03, after they move the complainant's head back onto the gurney, the sergeant tells Respondent Martes to let go of his head, which she does.

The CCRB also relies on the footage captured by the BWC of Officer Howard. (CCRB Ex. 4) At 17:12, Respondent Martes momentarily removes her hands from the complainant's head. The complainant raises up, and so Respondent Martes places her hands back on his head to bring him back down to the gurney. At 23:02, when the sergeant is visible in the ambulance, the complainant is still struggling with the officers, and they explain to the sergeant that the complainant keeps moving forward. The sergeant assists the officers with the straps, and, at 23:52, tells Respondent Martes to let go of his head, which she does.

Respondent Martes testified that after the complainant spit on them, the officers attempted to place a face mask on him. The complainant tried to bite one of the officers, and continued to be combative with them, so Respondent Martes pushed down with her open hands to hold his head still. Respondent Martes explained that they needed to secure the complainant to the gurney for his safety and the safety of others in the ambulance. She did not know how, or at what point, the complainant suffered the cut to his head. (Tr. 48, 53, 84-85, 89-95)

Paragraphs 11 and 12 of Section 221-02 of the Patrol Guide require uniformed officers to apply no more than the reasonable force necessary to gain control, and to assess the situation continually and adjust the use of force as necessary. Additionally, as stated in Section 221-13 of the Patrol Guide, “The safety of all persons involved is paramount in cases involving emotionally disturbed persons.” The CCRB contends that Respondent Martes used unreasonable force by holding down the complainant’s head in the manner that she did, while the defense maintains that her use of force was reasonable under the circumstances to maintain the safety of everyone involved.

In his hearsay statement, the complainant stated that Respondent Martes pushed his head down, and in the video footage he can be seen and heard complaining loudly that he was in pain. However, as noted above, the complainant did not appear at trial, and so there was no opportunity to test his credibility with questions about the details of the encounter, including his combativeness with the officers. Additionally, from the outset of his interaction with the officers, the complainant appeared preoccupied with his intention to sue, and so it would have been useful to explore with him at trial whether his screams of pain were real or performative.

Respondent Martes, meanwhile, testified credibly about her interaction with the complainant. She explained the need to safely secure the complainant before they could transport him to the hospital. As noted in the earlier discussion of Specifications 2 and 3, the complainant actively resisted their efforts, spit on the officers, and attempted to bite them when they tried to put a mask on his face. Respondent Martes acknowledged that she held the complainant’s head but explained that she did so in a way designed to hold him still, without restricting his breathing.

The testimony of Respondent Martes was supported by the video footage, which showed the complainant struggling continuously against their attempts to secure him to the gurney. Respondent Martes and the officers repeatedly encouraged him to cooperate, but he refused to do so. The CCRB argued that Respondent Martes was being punitive and retaliatory in response to the verbal abuse directed at her by the complainant, but based on the video footage, in conjunction with her testimony, it appeared more likely than not that Respondent Martes's actions were motivated by a desire to gain control of the resisting complainant. It was for that reason that she placed her hands back on his head after he raised himself up from the gurney at the 17:12 mark of CCRB's Exhibit 4. The CCRB also pointed out that Respondent Martes only released her hold on the complainant's head after the sergeant instructed her to do so. However, it's important to note that when the sergeant appears in the ambulance at the 23:02 mark of the same recording, the officers can be seen still struggling to secure the straps on the gurney. The sergeant does not immediately tell Respondent Martes to release the complainant's head. Instead, he first assists the officers in further securing the complainant, and only then tells Respondent Martes to let go of his head.

Under these specific circumstances, the CCRB has not met its burden of proving that Respondent Martes used unreasonable force against the complainant. Accordingly, I find her Not Guilty of Specification 5.

APPROVED

MAR 17 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials